



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: UDC-21-00219 – Enhanced Use Lease, Zoning
Date: June 28, 2021

Background:

The item for consideration is a *Rezoning*. This is approved by ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral: June 28, 2021
- Public Services Committee: July 7, 2021
- Second Reading: July 12, 2021
- Public Services Committee: July 20, 2021
- Third and Final Reading: July 25, 2021

This zone change application proposes changing the zoning from County X (Exempt) to SS (Support Services) zoning district for the area commonly referred to as the 'Enhanced Use Lease Area (EUL)'. The area is proposed to be annexed to the City of Cheyenne and therefore requires a City zone. The EUL is anticipated to be open to the public and to include a mix of commercial, office, and multifamily development. A related annexation ordinance is a companion item on this agenda.

The Planning Commission reviewed this item at their June 21, 2021, meeting and recommends the Governing Body approve the rezoning. The Planning Commission staff report is attached and is unchanged.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY X (EXEMPT) TO SS (SUPPORT SERVICES) FOR A PORTION OF THE S½ OF SECTION 35, AND A PORTION OF THE SW¼ OF SECTION 36, T14N, R67W, LARAMIE COUNTY, WYOMING GENERALLY LOCATED SOUTHWEST OF INTERSTATE 25 AND HAPPY JACK ROAD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That City staff has petitioned City Council for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on June 21, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification is hereby changed to SS (Support Services) for the subject property, which is described as follows:

A tract of land situated in a portion of F.E. Warren AFB Military Reservation located south of Happy Jack Road, also lying in a portion of Protracted Sections 35 and 36, Township 14 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows: Beginning at a point on the southeasterly corner of said F.E. Warren AFB Military Reservation, from which the north quarter corner of Section 1, Township 13 North, Range 67 West bears S.74°15'13"E (when considering the north line of the NW¼ of said Section 1 has a bearing of N.89°57'36"W.), a distance of 1239.86 feet; thence N.78°35'41 "W., a distance of 1297.38 feet; thence N.35°59'10"W., a distance of 937.39 feet; thence S.16°04'22"W., a distance of 1019.91 feet; thence S.82°06'12"W., a distance of 2152.23 feet to the southerly right-of-way line of Happy Jack Road; thence northeasterly along said southerly right-of-way line, a distance of 168.94 feet along a curve concave to the northwest, having a radius of 2009.86 feet and a central angle of 04°48'57" (chord bearing of N.62°46'52"E., chord distance of 168.89 feet); thence N.60°22'24"E., along said southerly right-of-way line, a distance of 3833.62 feet; thence northeasterly along said southerly right-of-way line, a distance of 296.87 feet along a curve concave to the southeast, having a radius of 1045.92 feet and a central angle of 16°15'46" (chord bearing of N.68°30'17"E., chord distance of 295.88 feet) to the westerly right-of-way line of Interstate 25; thence S.26°00'04"E., along said westerly right-of-way line, a distance of 1432.53 feet; thence S.15°38'47"W., along said westerly right-of-way line, a distance of 553.07 feet to the point of beginning. Containing 75.277 acres more or less.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

JUNE 21, 2021

STAFF REPORT

FILE: UDC-21-00219: County Exempt to Support Services – SW of I-25 and Happy Jack Road

REQUEST: A request to rezone 75.277 acres of land from County Exempt District to SS (Support Services) zoning district

LOCATION: Southwest of Happy Jack Road and I-25

APPLICANT: City of Cheyenne

OWNER: United States of America (Francis E. Warren Air Force Base)

ZONING: County Exempt

PURPOSE: To facilitate future development of commercial, office, and multifamily

PREPARED BY: Charles W. Bloom, AICP, Planning and Development Director



RECOMMENDED MOTION:

Move to **approve** the rezoning of 75.277 acres of land from County X (Exempt) zone district to SS (Support Services) zone district, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County X (Exempt) to SS (Support Services) zoning district for the area commonly referred to as the 'Enhanced Use Lease Area (EUL).' The area is proposed to be annexed to the City of Cheyenne and therefore requires a City zone. The EUL is anticipated to be open to the public and to include a mix of commercial, office, and multifamily development.

A UDC text amendment creating the SS zoning district was reviewed by the Planning Commission at their October 5, 2020 Planning Commission meeting and was approved by the Governing Body at their November 12th meeting. The purpose of the new zone district was to create a new district that recognizes needed flexibility for government owned lands associated with Francis E. Warren Air Force Base that may develop as civilian-accessible property within the City limits. The standard zone districts in the City do not necessarily contemplate the unique land ownership structure (leases and other arrangements) that may accompany development.

On February 3, 2020 the Planning Commission reviewed a proposed zone change to MUB (Mixed Use Business) zoning district and recommended the Governing Body approve the change. At the request of the landowner, this was not forwarded onto the Governing Body for consideration.

On November 2, 2020 the Planning Commission accepted withdrawal of a proposed change UDC-20-00443.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Military/Federal	County X	Vacant (former Cheyenne Frontier Days Park and Ride)
North and West	Military	County X	Vacant, Low-density Residential, Civic (Air Force Base)
South	Urban Residential (UR) and Mixed-use Residential (MUR)	County A-1	Vacant
East	Mixed-use Employment (MUE), Mixed-use Commercial (MUC)	LI (Light Industrial), P (Public), CB (Community Business)	Vacant, outdoor sales

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This area is within the Urban Service Boundary and there are existing infrastructure lines in the area; however, the development of the site would require infrastructure improvements and investment.

This area, and the area to the north of this property is designated as Military/Federal on the Future Land Use Map of PlanCheyenne. The Military/Federal designation is not discussed by the Plan and is devoid of recommendations.

The triangle of land south of this property is designated Urban Residential, the rest of the area directly to the south is designated Mixed-use Residential, and areas to the east (across I-25) are designated Mixed-use Commercial and Mixed-use Employment. Mixed-use zoning is anticipated for all of the mixed-use future land use designations and MUB is the principally suggested zone for areas designated Mixed-use Commercial. While there is a triangle of land designated Urban Residential, that triangle is currently zoned County MU and residential development is an anticipated component of areas zoned MUB.

PlanCheyenne designates the area east of I-25 and south of Missile Drive as the center of a Regional Activity Center. Regional Activity Centers are intended to develop with large-scale commercial uses which service the entire region, with a mix of office, restaurants, and residential as secondary uses. The CB and MUB zones are encouraged in these activity centers, and MUB zoning is proposed with this zone change. This property is not located in the central portion of the activity center but is within ½ mile and is adjacent to a freeway interchange.

The SS zone district supports mixed-use development and regional activity center aspects of the area. The proposed zone change is in accordance with the plans and policies outlined in PlanCheyenne and **complies** with review criteria 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The subject property and areas to the north are currently zoned X (Exempt) by Laramie County. This zoning designation does not appear in, and is not subject to, the Laramie County Land Use Regulations (2019). As the X zone is not subject to local regulation it is not possible to determine exactly how compatible the proposed SS zoning is with the X zone district. However, the area zoned X adjacent to the proposed zone change is developed with single-family housing, a school, and vacant land. The general development pattern is reflective of City LR or MR zoning. SS zoning can act as a transition zone from intense commercial zones to residential zones, so this property being zoned SS could act as a transition zone from the CB and LI east of I-25 to the residential development northwest of Happy Jack Road.

There is a triangle of land surrounded on two sides by the EUL which is zoned MU by Laramie County. The MU zone is the County zone most similar to the MUB zone, and this zone change request should not unduly influence the development of that land. Most of the land to the south is zoned A-1 by Laramie County, which encourages agricultural-style uses – however the future land use plan indicates the area should develop with a mix of uses with a residential emphasis, and a mixed-use zone is compatible with this anticipated development pattern.

Existing City zoning across I-25 includes CB, LI, and P zones. These zones are generally more intense than the SS zone, and this proposed zoning would not have an undue influence upon these properties.

The proposed zone change for the subject property **complies** with review criteria 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

This property is currently zoned X in the County, which designation does not appear in, and is not subject to, the Laramie County Land Use Regulations (2019). Annexation to the City requires a City zone. The City zone most analogous to the County X zone is the M Military District zone. The M district is intended for property owned and controlled by the United States Government (further known as F.E. Warren AFB), and specifically states that areas zoned M are not subject to local regulation. The Air Force has indicated they will follow City development regulations for development of portions of lands owned by them making the M zone district not appropriate.

The proposed zone for this property is the SS zone which is intended to recognize needed flexibility for government owned lands associated with major F. E Warren Air Force Base that may develop as civilian-accessible property within the City limits. This zone encourages a mix of commercial, office, and residential uses.

The proposed zone change **complies** with review criteria 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Presently platting action is being considered for this land. The subdivision standards of Article 4 of the Unified Development Code will be required to be followed. Future site development will be reviewed per the site plan review process.

The proposed zone change for the subject property from MUB to CB **complies** with review criteria 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The application supports the intent of the SS zoning district intent and applicability. The application falls on the edge of an Activity Center as designated by the Comprehensive Plan and

will serve the greater Cheyenne area by accommodating a variety of uses. The subject property must meet the applicable design requirements of the Unified Development Code.

The proposed zone change for the subject property from MUB to CB **complies** with review criteria 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The subject property is well suited to meet all applicable standards of the SS district. The SS district allows a variety of uses and permits flexible development standards that will accommodate a variety of development proposals.

The proposed zone change **complies** with review criteria 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided comments on the proposed zone change. No other comments were received.

The proposed zone change for the subject property **complies** with review criteria 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criteria 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

The application conforms to PlanCheyenne per the discussion with Review Criterion 1.

STAFF REVIEW:

The application is warranted by the characteristics of the surrounding properties and its regional context. The setbacks and build-to lines mandated by the SS zone would result in a project that will compliment nearby development. This application supports revitalization and infill development in West Cheyenne and invests in an important gateway to downtown Cheyenne from the south and west. Staff is supportive of this zoning map amendment as it is compatible with surrounding development, promotes economic development, and reinforces policies within PlanCheyenne.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d) The zoning map amendment application is consistent with the zoning of surrounding properties and responds to current market demands for the subject property. The zone change meets the review criteria of UDC 2.2.1.(d); therefore, staff recommends approval of the zoning map amendment as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

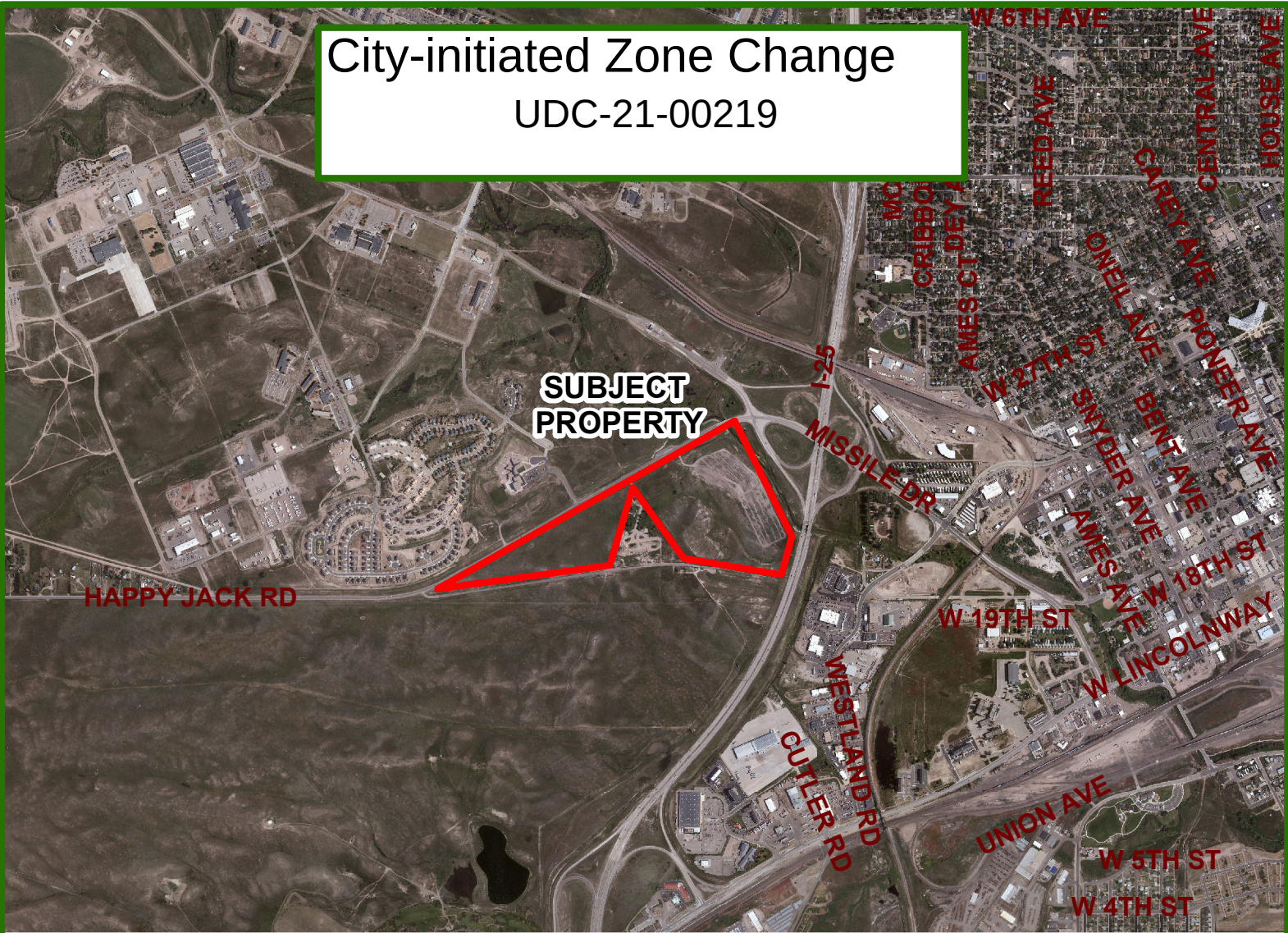
Staff recommends approval of the rezoning of the property from County Exempt District to SS (Support Services) zoning district.

ATTACHMENTS:

1. Zoning and Land Use Plan Map

City-initiated Zone Change

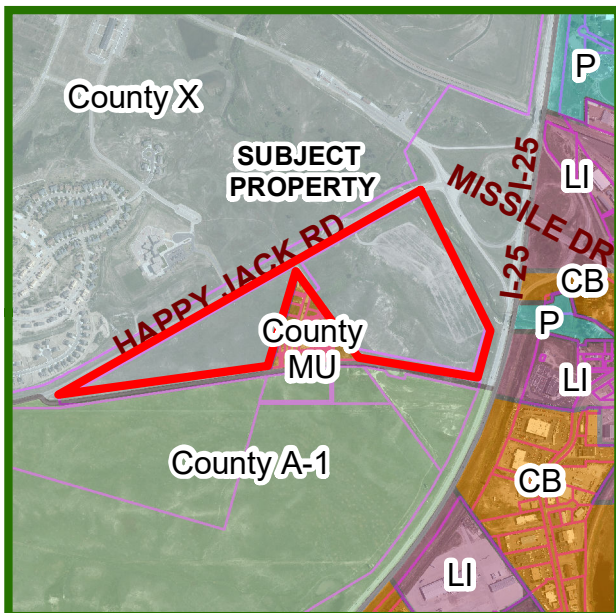
UDC-21-00219



Applicant: City of Cheyenne
Application Type: Zone Change
Application No.: UDC-20-00443

0 2,000 4,000
Feet

Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

